

# Landlady's writ against tenant's connection and arrears consigned to records

High Court of Judicature at Allahabad · Division Bench · 28 August 2014 · Writ-C No. 45274 of 2014 · WRIT - C No. - 45274 of 2014 · **Writ consigned to records; no interference under Clauses 4.3 and 4.4.**

## HEADNOTE

A landlady challenged an electricity connection granted to a person asserting tenancy and the saddling of previous dues of Rs. 19,002 on her. The Division Bench declined to interfere, holding that Clauses 4.3 and 4.4 of the Electricity Supply Code, 2005 governed and that recovery of those dues as between landlady and tenant was a private dispute for an interim application in the tenant's pending civil injunction suit. The writ was consigned to records.

## FACTUAL SUMMARY

Smt. Krishna Devi, landlady of the premises, filed this writ after respondent no. 4, asserting tenancy, was awarded an electricity connection. She contended that previous dues of Rs. 19,002 had been saddled on her although the consumption had been enjoyed by the tenant. The tenant had already instituted a civil suit for injunction restraining eviction, in which she was a defendant. She sought interference with the impugned electricity order.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.3

owner-occupier-liability-and-occupant-connection

#### HOLDING

The Court found no reason to interfere with the impugned order granting the tenant an electricity connection and leaving previous dues of Rs. 19,002 on the landlady, keeping in view Clauses 4.3 and 4.4 of the Electricity Supply Code, 2005. Recovery of those dues as between landlady and tenant was treated as a private dispute to be raised by interim application in the pending civil suit, to be disposed of expeditiously if filed. The writ was consigned to records. ¶ 1

## PRINCIPLE TAGS

**clause-4.4-occupant-connection-on-indemnity-bond** A landlady challenged an electricity connection granted to a person asserting tenancy and the saddling of previous dues of Rs. 19,002 on her.. ¶ 1

**arrears-run-with-the-premises** A landlady challenged an electricity connection granted to a person asserting tenancy and the saddling of previous dues of Rs. 19,002 on her.. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — INTER SE LIABILITY OF LANDLADY AND TENANT FOR THE RS. 19,002 ELECTRICITY DUES

Left to an interim application in the tenant's pending civil injunction suit. ¶ 1